

discovery obligations that one would expect to see from counsel diligently attempting to informally resolve the matter.

Zigi requests \$8,664.99 in sanctions: \$2,124.99 in costs for court reporters and videographers for the February and June depositions, eight hours of attorney time on the motion, and four hours of attorney time on the reply and attending the hearing, at \$545 an hour. The \$2,124.99 in costs for the court reporters and videographer is substantiated by the invoices, and the hourly rate and expenses is reasonable given the nature of the litigation and prevailing rates in the area. Twelve hours of attorney time is somewhat excessive, however, for a straightforward motion to compel when the deponent twice failed to appear. The court reduces the number of hours on this motion to eight.

Ruling: Grant the motion to compel and order 22000 Opportunity Way to produce a PMK for deposition within 10 days. Award moving party \$6,484.99 in sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402278	PINYON CREST COMMUNITY ASSOCIATION vs LGR DEVELOPMENT	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The request of LGR to continue the motion for post judgment attorney fees and to allow limited discovery is granted. The motion for attorney fees is continued to 10/1/2026 at 8:30 am in Dept. 3. LGR is entitled to discovery regarding the additional attorney fees and costs sought.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406201	LIN vs YOW	MOTION TO TAX COSTS

Tentative Ruling:

In ruling on a motion to tax costs, the court must first determine “whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking the expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

There is no dispute that Defendant, Yow, were the prevailing parties in this action based on Plaintiff’s voluntary dismissal of the action. A prevailing party is “entitled as a matter of right to recover costs in any action or proceedings.” (CCP § 1032(a)(4).)